
Journal

2010 YLR 3098

Court

LAHORE HIGH COURT

Date

2010-07-05

Appeal No.

WRIT PETITION NO. 9838 AND CRIMINAL ORIGINAL NO. 925-W OF 2010

Judge

IQBAL HAMEED-UR-REHMAN

Parties

GHULAM NABI (PETITIONER) VERSUS MST. ASIA PERVEEN AND 3 OTHERS
(RESPONDENTS)

Lawyers

CH. MUHAMMAD ASIF RANJHA FOR PETITIONER. GOHAR NAWAZ SANDHU FOR
RESPONDENT.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 5 AND SCHEDULE
CONSTITUTION OF PAKISTAN (1973) - ARTICLES 199 AND 204

Judgment

IQBAL HAMEED-UR-RAHMAN, J.-This judgment shall dispose of Writ Petition No. 9838 of 2010 and Criminal Original No. 925-W of 2010, in which common question of law is involved.

2. Through this writ petition, the petitioner prays that proceeding conducted by Mr. Afzaal Ahmad Butt, Civil Judge/ Family Court, Daska, in respect of dissolution of marriage of Mst. Asia Parveen respondent be declared to be totally illegal and of no consequence. Through the Criminal Original, the petitioner prays that action of contempt be ordered against Mr. Afzaal Ahmad Butt, Civil Judge, Daska and disciplinary action may also be initiated.

A 2-A. It is stated that a transfer application had been moved by the petitioner before this Court in which a Family suit of respondent No. 1 which was pending before the Family Court at Daska was transferred to the Senior Civil Judge, Sialkot and he was directed to either hear the case himself or entrust the same to some other Civil Judge/Judge Family Court. It is further stated that said order of High Court was passed on 4-12-2009 in T.A. No. 386-C of 2009 and direction was given to the parties to appear before the Senior Civil Judge, Sialkot on 15-12-2009. In view of the same, the parties appeared before the Senior Civil Judge, Sialkot who had entrusted the same to one Mr. Sajawal Khan, Civil Judge/Judge Family Court, Sialkot vide his order dated 15-12-2009 and parties were directed to appear before the said Family Court on 16-12-2009. It is stated that in the meanwhile, somehow the file had been transferred to Mr. Afzaal Ahmed Butt, Civil Judge/Judge Family Court, Daska who after receiving the file on 15-12-2009 adjourned the same to B 21-12-2009 wherein the counsel had appeared before him and apprised the court that on transfer application the suit had been transferred to Senior Civil Judge, Sialkot vide order dated 4-12-2009 in T.A. No.386-C of 2009 by Hon'ble High Court, which had been entrusted to Mr. Sajawal Khan, Civil Judge/Judge, Family Court, Sialkot as such the Court cannot take cognizance of the same but in spite of the same Mr. Afzaal Ahmed Butt, learned Judge Family Court, Daska fixed the suit for arguments for 23-12- 2009. Thereafter, on 23-12-2009 the same was fixed for 4-1-2010. On the said date, on the statement of the respondent the suit for dissolution of marriage has been decreed. It is stated that the said judgment and decree has been passed without jurisdiction and the suit was not entrusted to him as such the impugned judgment and decree is not sustainable.

3. On the other hand, learned counsel for respondent No. 1 has stated that on 4-12-2009, this Court accepted the transfer application (T.A. No.386-C of 2009) in respect of family suit filed by respondent No.1 pending before the learned Family Court Sahiwal and the same was transferred to the learned Senior Civil Judge, Sialkot and he was directed to either himself hear the said suit or entrust the same to any other learned Civil Judge and the parties were directed to appear before him on 15-12-2009. It is further stated that on 11-12 2009, the learned Family Judge Daska after receiving order dated 4-12-2009 passed by this Court forwarded the file of the said suit to the learned Senior Civil Judge, Sialkot and the same was received on 12-12-2009 by the learned Senior Civil Judge Sialkot who entrusted the case to Mr. Afzaal Ahmad Butt, Civil Judge 1st Class Daska on the same day i.e. 12-12-2009 and the parties were directed to appear on 15-12-2009 as per order of this Court. It is further stated that on 15-12-2009, the learned Civil Judge Daska issued notices to the parties and the case was adjourned to 21-12-2009 and on 21-12-2009, learned counsel for respondent No. 1/plaintiff filed memo of appearance and learned counsel for the petitioner filed his power of attorney to join the proceedings and the case was adjourned for 23-12-2009. It is further stated that the case was further adjourned after proceedings and the same was fixed for 4-1-2010 and on the said date i.e. 4-1-2010, the suit of respondent No.1 was decreed in accordance with law. It is further stated that the case file never entrusted to Mr.Sajawal Khan, Civil Judge/Judge Family Court, Sialkot but the same was entrusted to Mr. Afzaal Ahmad Butt, Civil Judge/Judge Family Court Daska. It is further stated

that as per stamp of entrustment of the case to Mr.

Sajawal Khan, Civil Judge, the learned Senior Civil Judge entrusted the case to Mr. Sajawal Khan, Civil Judge/Judge Family Court, Sialkot on 15-10-2009 and the parties were directed to appear on 16-12-2009, therefore, it is very strange that as the transfer order of this Court is of dated 4-12-2009, how the case can be entrusted on 15-10-2009 and even one and a half month earlier than transfer order of this Court. It is further stated that the judgment and decree, dated 4-1-2010 passed by Mr. Afzaal Ahmad Butt, Civil Judge/Judge Family Court, Daska, has been passed in accordance with law after getting jurisdiction on entrustment of case file by the order of the learned Senior Civil Judge, Sialkot, vide order dated 12-12-2009. It is further stated that after getting divorce decree from the said Court, respondent No.1 applied for divorce certificate before the concerned Union Council No.20 Doburji Arrian, Tehsil and District Sialkot and required process period of ninety days has already elapsed and divorce certificate is likely to issue very soon. It is further stated that respondent No.1 is young lady and wants to marry according to her own free will after getting divorce certificate. It is further stated that all the proceedings conducted by Mr. Afzaal Ahmad Butt, learned Senior Civil Judge, Family Court, Daska are in accordance with law and the same are in accordance with the order of the learned Senior Civil Judge, Sialkot. It is further stated that in view of the above circumstances, this writ petition be dismissed and Criminal Original be also dismissed.

4. I have heard learned counsel for the petitioner as well as learned counsel for the respondents and have also perused the record of the learned trial Court as well as material available on the file.

5. From the perusal of the record of the learned trial Court, it appears that on 11-12-2009, the learned Family Judge, Sahiwal after receiving order dated 4-12-2009 passed by this Court forwarded the file of the suit filed by respondent No.1 Mst. Asia Parveen to the learned Senior Civil Judge, Sialkot and the same was received on 12-12-2009 by the learned Senior Civil Judge Sialkot who entrusted the case to Mr. Afzaal Ahmad Butt, Civil Judge 1st Class Daska on the same day i.e.

12-12-2009 and the parties were directed to appear on 15-12-2009. On 15-12-2009, the learned Civil Judge Daska issued notices to the parties and the case was adjourned to 21-12-2009 and on 21-12-2009, learned counsel for respondent No. 1/plaintiff filed memo of appearance and learned counsel for the petitioner filed his power of attorney and the case was adjourned to 23-12-2009.

On 23-12-2009, the case was further adjourned to 4-1-2010. On 4-1-2010, Mr. Afzaal Ahmad Butt, Civil Judge/Judge Family Court, Daska, decreed the suit of Mst. Asia Parveen, respondent No.1, for dissolution of marriage filed against the petitioner.

Perusal of the order, dated 4-12-2009 shows that both the petitioner Ghulam Nabi and Mst. Asia Parveen were present on the said date i.e. 4-1-2010 and they made signatures and thumb impressions on the first page of the said order. Perusal of order dated 4-1-2010 further reveals that learned counsel for the parties were also present on the said date. It appears that the petitioner has admitted divorce decree dated 4-1-2010 passed by Mr. Afzaal Ahmad Butt, Civil Judge/Judge Family Court, Daska, as such, the same has rightly been passed. It is also observed that order dated 12-12-2009 of the learned Senior Civil Judge, Sialkot, regarding entrustment of suit filed by respondent No.1 Mst. Asia Parveen to Mr. Afzaal Ahmad Butt, Civil Judge/Judge Family Court, Daska, is also correct and there is no ambiguity in the said order.

D H.B.T./G-47/L 6. It also appears from the record that as per stamp of entrustment of the case

to Mr. Sajawal Khan, Civil Judge, the learned Senior Civil Judge entrusted the case to Mr. Sajawal Khan, Civil Judge/Judge Family Court, Sialkot on 15-10-2009 and the parties were directed to appear on 16-12-2009, therefore it is not believable that as the transfer order of this Court is of dated 4-12-2009, how the case can be entrusted to Mr. Sajawal Khan, Civil Judge/Judge Family Court, Sialkot, on 15-10-2009 and that too one and half month earlier than transfer order of this Court.

7. In view of the above perspective, I am of the considered view that the proceedings before Mr. Afzaal Ahmad Butt, Civil Judge/Judge Family Court, Daska, have been conducted in accordance with law and the impugned order/decreed dated 4-1-2010 has rightly been passed in favour of Mst. Asia Parveen respondent No. I and in view of the same, no case for contempt of Court against Mr. Afzaal Ahmad Butt, Civil Judge/Judge Family Court, Daska, has been made out. Therefore, this writ petition is dismissed.

8. In view of the dismissal of this writ petition, Criminal Original No. 925-W of 2010 is also dismissed.

Petition dismissed.

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